

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**----- X
ANGELO HERNANDEZ

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
New York City Police Department ("NYPD") Sergeant
DARYL MELHADO, in his individual capacity; NYPD
Detective ALHADYS REYES, in his individual capacity,Defendants.
----- X**VERIFIED COMPLAINT**

JURY TRIAL DEMANDED

Index No.:

Plaintiff ANGELO HERNANDEZ, by and through his attorneys, Bernstein Clarke & Moskovitz PLLC, alleges as follows:

PRELIMINARY STATEMENT

1. On February 15, 2017, plaintiff Angelo Hernandez was arrested by NYPD officers whom he has information to believe were defendants Daryl Melhado and Alhadys Reyes. The officers did not have probable cause to arrest Mr. Hernandez, who was doing nothing more than taking shopping bags filled with presents for his children to his girlfriend's apartment. After falsely arresting Mr. Hernandez, the officers provided false allegations to the Bronx County District Attorney's Office that they saw Mr. Hernandez hand drugs to another man, which he had not done.

2. As a direct result of the officers' false accusations, serious felony charges were brought against Mr. Hernandez and he was incarcerated for several days before bail could be posted. Mr. Hernandez was later re-incarcerated for more than five weeks because of an alleged parole violation based on the same false allegations made by the officers. Eventually, the

criminal charges and alleged parole violation were dismissed, but Mr. Hernandez had already lost his job and spent weeks wrongfully incarcerated.

3. This case is brought to vindicate Mr. Hernandez's civil and constitutional rights, to obtain damages for his injuries, and to see that the defendant officers are held accountable for their misconduct.

JURISDICTION

4. This action is based on violations of plaintiff's rights under the New York State Constitution and common law; as well as 42 U.S.C. § 1983 for violations of rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

6. Venue is proper in Bronx County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and Bronx County is where the events giving rise to this action took place.

JURY DEMAND

7. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

8. Plaintiff ANGELO HERNANDEZ is a citizen of the United States and of the State of New York. At all times relevant to this complaint, he resided in Bronx County, in the City of New York.

9. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York.

10. The City is authorized by law to maintain a police department and does maintain the New York City Police Department (hereinafter referred to as “NYPD”). The NYPD acts as the City’s agent and the City assumes the risks incidental to the maintenance of a police department and the employment of police officers.

11. Upon information and belief, at all relevant times, defendants DARYL MELHADO and ALHADYS REYES, were and are citizens of the United States and the State of New York.

12. At all relevant times, the individual defendants were employed by the City and acted under color of law in the course and scope of their duties and authority as officers, agents, servants, and employees of the NYPD and the City.

13. At all relevant times, the individual defendants violated plaintiff’s clearly established rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and Article 1 §§ 1, 6, and 12 of the New York State Constitution, of which reasonable law enforcement officers in their respective circumstances would have known were violations of plaintiff’s rights.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

14. Plaintiff served a Notice of Claim upon the City by electronic means, as prescribed by the Office of the New York City Comptroller within ninety days of the events giving rise to plaintiff’s claims.

15. Plaintiff received confirmation that his Notice of Claim was received by the New York City Comptroller’s Office.

16. The City conducted an examination of plaintiff pursuant to New York General Municipal Law § 50-h on May 10, 2018.

17. More than thirty days have elapsed since the Notice of Claim was served on the Comptroller's Office, and the City has neglected and/or refused to adjust or pay plaintiff's claim.

18. This action is filed within one year and ninety days of the events giving rise to plaintiff's claims.

STATEMENT OF FACTS

19. On February 15, 2017, plaintiff borrowed a car from a friend to go shopping with his long-time girlfriend for presents for their children.

20. After shopping, plaintiff and his girlfriend returned to her apartment to drop off their shopping bags.

21. Plaintiff parked the car on 137th Street between Cypress Avenue and St. Ann's Avenue in the Bronx, across from his girlfriend's apartment building.

22. Plaintiff and his girlfriend took some of their shopping bags out of the car and went up to her apartment.

23. Later, plaintiff's friend called him and said that he was outside of plaintiff's girlfriend's building.

24. Plaintiff went back downstairs to collect the few remaining shopping bags and return the car keys to his friend.

25. Plaintiff took shopping bags, a basketball, and his son's backpack out of the car.

26. As plaintiff was turning to walk to his girlfriend's apartment, a car stopped next to him and two men jumped out of the car.

27. The men were not in uniform, but they were police officers and upon information and belief, they were defendants Daryl Melhado and Alhadys Reyes.

28. One of the officers grabbed plaintiff, threw him against a fence, and searched him.

29. The officer did not find any drugs or contraband on plaintiff.

30. Plaintiff was handcuffed and placed into a police vehicle.

31. Plaintiff was transported to the 41st Precinct where he was strip searched, photographed, and fingerprinted.

32. That night, plaintiff was transported to Central Booking.

33. The next day, plaintiff was arraigned in Bronx County Criminal Court under case number 2017BX006906.

34. The Criminal Court Complaint included the following allegations by defendant Melhado: that he saw plaintiff “remove a clear plastic bag containing multiple clear zip lock bags” from the trunk of a car and gave the bag to a person named Kelvin Davis.

35. The Criminal Court Complaint also included an allegation from defendant Reyes that he found plastic bags with what he believed was cocaine in them inside of Kelvin Davis’ pocket.

36. Plaintiff never possessed drugs on February 15, 2017, and never handed a bag or bags with drugs to any person on that date.

37. On February 15, 2017, the only item that plaintiff handed his friend while they were on 137th Street was car keys; plaintiff did not hand him a bag or any other item.

38. As a direct result of the defendant officers’ false allegations, serious felony charges were brought against plaintiff.

39. After plaintiff was arraigned, he was held in custody on bail.

40. Because he was incarcerated, plaintiff missed work on February 16, 2017 and lost his job as a result.

41. On February 18, 2017, plaintiff was released from custody on bail.

42. Plaintiff was on parole at that time and he immediately contacted his parole officer after he was released to notify the parole officer that he had been arrested.

43. On Monday, February 20, 2017, plaintiff reported to the office of his parole officer and, because he had been arrested, plaintiff was required thereafter to report weekly, which he did without incident.

44. Plaintiff was a model parolee and fulfilled all the terms of his parole.

45. However, solely because he was arrested, through no fault of his own, plaintiff was charged with a parole violation and taken into custody on March 29, 2017.

46. Plaintiff was held at the Vernon C. Bain Center while the parole violation charge was pending.

47. On or about April 20, 2017, the criminal charges against plaintiff were dismissed.

48. However, plaintiff remained incarcerated because of the parole violation charge.

49. On or about May 5, 2017, a parole hearing was held, and the parole violation was dismissed.

50. On or about May 5, 2017, plaintiff was released from custody.

51. Plaintiff was eligible for early release from parole in September 2017; however, because he was arrested on February 15, 2017 he was not released from parole until March 2018.

52. As a direct result of the defendants' conduct, plaintiff suffered the violation of his federal and state constitutional rights, as well as other rights protected by New York common law.

53. Among other things, plaintiff suffered a significant loss of his liberty, emotional pain and suffering, pecuniary loss, distress, humiliation, fear, and embarrassment.

FIRST CAUSE OF ACTION
New York State Constitutional Violations

54. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

55. Defendants subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 §§ 1, 6, and 12 of the New York State Constitution, including, without limitation, the rights and privileges secured to all citizens of the State of New York, the right to due process, and the right to be free from unreasonable searches and seizures.

56. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

57. Defendant City is vicariously liable for the conduct of the individual defendants as set forth herein.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983 – Federal Constitutional Violations

58. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

59. In committing the acts and omissions complained of herein, the defendants acted under color of state law, individually and in concert, to deprive plaintiff of his constitutionally protected rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable searches and seizures;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from deprivation of liberty without due process of law;
- d. the right to be free from detention and prosecution without probable cause;
- e. the right to a fair trial; and
- f. the right not to be deprived of liberty based on the fabrication of evidence.

60. In committing the acts and omissions complained of herein, the defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

61. As a direct and proximate result of the defendants' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

62. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

THIRD CAUSE OF ACTION
False Imprisonment

63. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

64. The defendants, through the foregoing acts, caused plaintiff to be wrongfully detained without good faith, reasonable suspicion, probable cause, or other legal justification,

65. Plaintiff was aware of this detention and did not consent to it.

66. The defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

67. The City is vicariously liable for the conduct of the defendant officers.

FOURTH CAUSE OF ACTION

Malicious Prosecution

68. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

69. The defendants were responsible for initiating a criminal proceeding against plaintiff.

70. The defendants were aware there was not probable cause to believe that plaintiff had possessed a controlled substance on February 15, 2017.

71. The criminal proceeding was terminated in plaintiff's favor when the charges against him were dismissed.

72. The proceeding was brought with malice, which is shown by the above-stated facts establishing the defendant officers knew they lacked probable cause.

73. The defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

74. The City is vicariously liable for the conduct of the defendant officers.

FIFTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

75. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

76. The defendants, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally and/or recklessly caused plaintiff to suffer severe mental and emotional distress, pain and suffering, and damage to name and reputation.

77. The individual defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

78. As a direct and proximate result of defendants' conduct, plaintiff suffered the injuries and damages set forth above.

79. The City is vicariously liable for the conduct of the individual defendants as set forth herein.

SIXTH CAUSE OF ACTION
Recklessness

80. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

81. The defendants owed plaintiff a duty of care, including the duty to exercise due care in the course of their duties as NYPD police officers and the duty to protect citizens from the intentional misconduct of other police officers.

82. The defendants, by the foregoing acts, recklessly failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

83. All of these acts were performed without any fault on the part of the plaintiff and were the proximate cause of injuries to the plaintiff.

84. As a direct and proximate result of defendants' conduct, the plaintiff suffered the injuries and damages set forth above.

85. The City is vicariously liable for the conduct of the defendants as set forth herein.

DEMAND FOR RELIEF

WHEREFORE, plaintiff demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;

- (b) punitive damages from the individual defendants to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
May 16, 2018

BERNSTEIN CLARKE & MOSKOVITZ PLLC
11 Park Place, Suite 914
New York, New York 10007
(212) 321-0087

By: 

Joshua S. Moskowitz

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

JOSHUA S. MOSKOVITZ, being duly sworn, deposes and says:

1. I am an attorney for the plaintiffs in the within action.
2. This verification is made by me because the plaintiff resides in Bronx County,
which is not the county in which my office is located.
3. The allegations contained in the foregoing Verified Complaint are true to my
knowledge, except as to matters alleged on information and belief, and as to those matters, I
believe them to be true based upon my inquiries.

Dated: May 16, 2018



JOSHUA S. MOSKOVITZ